

REFERENCE TITLE: **biometric identifiers; commercial use; prohibitions**

State of Arizona  
Senate  
Fifty-seventh Legislature  
Second Regular Session  
2026

## **SB 1717**

Introduced by  
Senators Kuby: Alston, Diaz, Gonzales, Hatathlie, Miranda, Ortiz,  
Sundareshan

**AN ACT**

**AMENDING TITLE 44, CHAPTER 9, ARIZONA REVISED STATUTES, BY ADDING ARTICLE 27; RELATING TO CONSUMER DATA.**

(TEXT OF BILL BEGINS ON NEXT PAGE)

1 Be it enacted by the Legislature of the State of Arizona:

2 Section 1. Title 44, chapter 9, Arizona Revised Statutes, is  
3 amended by adding article 27, to read:

4 ARTICLE 27. CONSUMER BIOMETRIC DATA

5 44-1383. Definitions

6 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

7 1. "ARTIFICIAL INTELLIGENCE SYSTEM" MEANS ANY MACHINE-BASED SYSTEM  
8 THAT, FOR ANY EXPLICIT OR IMPLICIT OBJECTIVE, INFERS FROM THE INPUTS THE  
9 SYSTEM RECEIVES HOW TO GENERATE OUTPUTS, INCLUDING CONTENT, DECISIONS,  
10 PREDICTIONS AND RECOMMENDATIONS.

11 2. "BIOMETRIC IDENTIFIER" MEANS A RETINA OR IRIS SCAN, FINGERPRINT,  
12 VOICEPRINT RECORD OF HAND OR FACE GEOMETRY OR UNIQUE BIOLOGICAL PATTERN OR  
13 CHARACTERISTIC.

14 44-1383.01. Biometric identifiers: commercial purpose;  
15 prohibited use; civil penalty

16 A. A PERSON MAY NOT CAPTURE AN INDIVIDUAL'S BIOMETRIC IDENTIFIER  
17 FOR A COMMERCIAL PURPOSE UNLESS THE PERSON DOES BOTH OF THE FOLLOWING:

18 1. INFORMS THE INDIVIDUAL BEFORE CAPTURING THE BIOMETRIC  
19 IDENTIFIER.

20 2. RECEIVES THE INDIVIDUAL'S CONSENT TO CAPTURE THE BIOMETRIC  
21 IDENTIFIER.

22 B. FOR THE PURPOSES OF SUBSECTION A OF THIS SECTION, AN INDIVIDUAL  
23 HAS NOT BEEN INFORMED OF AND HAS NOT PROVIDED CONSENT FOR THE CAPTURE OR  
24 STORAGE OF THE INDIVIDUAL'S BIOMETRIC IDENTIFIER FOR A COMMERCIAL PURPOSE  
25 BASED SOLELY ON THE EXISTENCE OF AN IMAGE OR OTHER MEDIUM CONTAINING ONE  
26 OR MORE BIOMETRIC IDENTIFIERS OF THE INDIVIDUAL ON THE INTERNET OR ANOTHER  
27 PUBLICLY AVAILABLE SOURCE UNLESS THE IMAGE OR OTHER MEDIUM WAS MADE  
28 PUBLICLY AVAILABLE BY THE INDIVIDUAL TO WHOM THE BIOMETRIC IDENTIFIERS  
29 RELATE.

30 C. A PERSON THAT POSSESSES AN INDIVIDUAL'S BIOMETRIC IDENTIFIER  
31 THAT IS CAPTURED FOR A COMMERCIAL PURPOSE:

32 1. MAY NOT SELL, LEASE OR OTHERWISE DISCLOSE THE BIOMETRIC  
33 IDENTIFIER TO ANOTHER PERSON UNLESS ONE OF THE FOLLOWING APPLIES:

34 (a) THE INDIVIDUAL CONSENTS TO THE DISCLOSURE FOR IDENTIFICATION  
35 PURPOSES IN THE EVENT OF THE INDIVIDUAL'S DISAPPEARANCE OR DEATH.

36 (b) THE DISCLOSURE COMPLETES A FINANCIAL TRANSACTION THAT THE  
37 INDIVIDUAL REQUESTED OR AUTHORIZED.

38 (c) THE DISCLOSURE IS REQUIRED OR ALLOWED BY A FEDERAL STATUTE OR  
39 BY A STATE STATUTE OTHER THAN TITLE 39, CHAPTER 1.

40 (d) THE DISCLOSURE IS MADE BY OR TO A LAW ENFORCEMENT AGENCY FOR A  
41 LAW ENFORCEMENT PURPOSE IN RESPONSE TO A WARRANT.

1           2. SHALL STORE, TRANSMIT AND PROTECT FROM DISCLOSURE THE BIOMETRIC  
2 IDENTIFIER USING REASONABLE CARE IN A MANNER THAT IS THE SAME AS OR MORE  
3 PROTECTIVE THAN THE MANNER IN WHICH THE PERSON STORES, TRANSMITS AND  
4 PROTECTS ANY OTHER CONFIDENTIAL INFORMATION THE PERSON POSSESSES.

5           3. SHALL DESTROY THE BIOMETRIC IDENTIFIER WITHIN A REASONABLE TIME  
6 BUT NOT LATER THAN THE FIRST ANNIVERSARY OF THE DATE THE PURPOSE FOR  
7 COLLECTING THE BIOMETRIC IDENTIFIER EXPIRES, EXCEPT AS PROVIDED BY  
8 SUBSECTION D OF THIS SECTION.

9           D. IF AN INDIVIDUAL'S BIOMETRIC IDENTIFIER THAT IS CAPTURED FOR A  
10 COMMERCIAL PURPOSE IS USED IN CONNECTION WITH AN INSTRUMENT OR DOCUMENT  
11 THAT IS REQUIRED BY ANOTHER LAW TO BE MAINTAINED FOR A PERIOD LONGER THAN  
12 THE PERIOD PRESCRIBED BY SUBSECTION C, PARAGRAPH 3 OF THIS SECTION, THE  
13 PERSON THAT POSSESSES THE BIOMETRIC IDENTIFIER SHALL DESTROY THE BIOMETRIC  
14 IDENTIFIER WITHIN A REASONABLE TIME BUT NOT LATER THAN THE FIRST  
15 ANNIVERSARY OF THE DATE THE INSTRUMENT OR DOCUMENT IS NO LONGER REQUIRED  
16 TO BE MAINTAINED BY LAW.

17           E. IF AN INDIVIDUAL'S BIOMETRIC IDENTIFIER THAT IS CAPTURED FOR A  
18 COMMERCIAL PURPOSE HAS BEEN COLLECTED FOR SECURITY PURPOSES BY AN  
19 EMPLOYER, THE PURPOSE FOR COLLECTING THE BIOMETRIC IDENTIFIER UNDER  
20 SUBSECTION C, PARAGRAPH 3 OF THIS SECTION IS PRESUMED TO EXPIRE ON  
21 TERMINATION OF THE EMPLOYMENT RELATIONSHIP.

22           F. A PERSON THAT VIOLATES THIS SECTION IS SUBJECT TO A CIVIL  
23 PENALTY OF NOT MORE THAN \$25,000 FOR EACH VIOLATION. THE ATTORNEY GENERAL  
24 MAY BRING AN ACTION TO RECOVER THE CIVIL PENALTY.